

24CMCV01575 24CMCV01575

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-30

Motion: PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

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Case Number: 24CMCV01575 Hearing Date: June 30, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ALBERT ANTHONY MIRAMONTES,

Plaintiff,

vs.

GENERAL

MOTORS LLC,

Defendant.

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CASE NO: 24CMCV01575

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

Dept.

A

DATE:

June 30, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 10/08/2024

DISPOSED:

03/23/2026

MOVING

PARTY: Plaintiff Albert

Anthony Miramontes

RESPONDING

PARTY: Defendant General Motors LLC

1. Background

This is an action under the Song-Beverly Act. Plaintiff Albert Anthony Miramontes ("Plaintiff") alleged that on December 8, 2020, he purchased a 2021 Chevrolet Silverado (the "Vehicle"), manufactured and/or distributed by defendant General Motors LLC ("Defendant"). Plaintiff alleged that, in connection with the purchase of the Vehicle, he received an express written warranty from Defendant. Plaintiff alleged that during the applicable express warranty period, the Vehicle developed defects and nonconformities to warranty that substantially impaired its use, safety, and/or value.

The action was dismissed without prejudice on March 23, 2026 following a conditional settlement, with the court retaining jurisdiction pursuant to Code of Civil Procedure § 664.6.

2. Discussion

Plaintiff moves for attorney's fees in the amount of \$25,676 as the prevailing party in this action. In support of this motion, Plaintiff provides the declaration of attorney Jordan G. Cohen. Attorney Tate declares the hourly rates of himself and attorneys Nancy Zhang, Alessandro Manno, Diana Rivero, and Bobby Walker, as well as paralegals David Gomez, Robert Aguilar, Wendy Martinez, Ana Mora, and Maria Chavarin.

Defendant did not file an opposition to this motion. Although, based on statements in Plaintiff's reply, Defendant apparently served an opposition, no opposition was filed for the court to consider. Defendant filed a sur-reply; however, a sur-reply may only be filed with leave of the court, which the court has not provided here. The court will

therefore not consider Defendant's sur-reply filed on June 22, 2026.

"[T]he

fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . . The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 ["To determine a reasonable attorney fee award, the trial court applies the lodestar method"].)

The

prevailing party is entitled to "compensation for all the hours reasonably spent" in litigating the action to a successful conclusion. (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 821.) 'Reasonably spent' means that time spent 'in the form of inefficient or duplicative efforts is not subject to compensation.' (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 394.) A plaintiff who receives monetary recovery as part of a settlement agreement is considered to be the prevailing party. (DeSaulles v. Community Hospital of Monterey Peninsula (2016) 62 Cal.4th 1140, 1156.)

"[T]he

verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State Univ. (2005) 132 Cal.App.4th 359, 396.)

However, the court may rely on his or her own experience and is given broad discretion in calculating reasonable attorney's fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 ["The experienced trial judge is the best judge of the value of professional services rendered in his court..."].)

The

lodestar may be augmented or diminished "by taking various relevant factors into account including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the

contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (Ibid.) The multiplier is a risk enhancement based on the probability of loss. (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 821 (Robertson).)

Plaintiff

requests \$25,676 in attorney's fees, based on \$22,876 in past fees and \$2,800 in anticipated fees in connection with the instant motion.

Plaintiff

provides a copy of the settlement agreement as Exhibit 2 to Attorney Cohen's declaration. The settlement agreement states that Plaintiff is the prevailing party in this action. (Cohen Decl., Ex. 2.) Plaintiff is therefore entitled to recover from Defendant attorney's fees, costs, and expenses that were reasonably incurred in connection with the commencement and prosecution of this action. (Civ. Code § 1794, subd. (d).)

Upon the court's review of counsel's

declarations, the court finds that the following hourly rates are reasonable:

\$560 per hour for attorney Jordan G. Cohen; \$540 per hour for attorney Nancy Zhang; \$440 per hour for attorney Bobby C. Walker; \$440 for attorney Alessandro Manno; and \$525 per hour for attorney Diana Rivero. The court finds that \$215 per hour for paralegal work is unreasonable, and therefore reduces paralegals David Gomez, Robert Aguilar, Wendy Martinez, Ana Mora, and Maria Chavarin' hourly rates to \$150.

The court has reviewed each entry on the

billing statements submitted by Plaintiff's counsel. Based on the court's review of the billing statement, the court finds that the requested hours were reasonably incurred. Additionally, Attorney Cohen's supplemental declaration states that he spent 5.4 hours preparing the reply brief in connection with this action at an hourly rate of \$560, totaling more than the requested \$2,800 in anticipatory fees. The court therefore finds that Plaintiff has established, as to the attorney's fees incurred to commence and prosecute this action and to prepare the pending motion for attorney's fees, a lodestar amount of \$24,330.50, after reducing paralegal rates as discussed above.

3. Conclusion

Based on the
foregoing, the court GRANTS Plaintiff's motion for attorney's fees. The court orders
that Plaintiff shall recover from Defendant a total of \$24,330.50 in
attorney's fees, pursuant to Civil Code § 1794, subdiv. (d).

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: June 30, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court